

Disqualification of Attorney Randall Winet:

A trial court may order disqualification of an attorney pursuant to CCP § 128(a)(5).) “Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility.” (*Neal v. Health Net, Inc.* (2002) 100 Cal. App. 4th 831, 840.) Disqualification is proper only when it is necessary to prevent a substantial and continuing effect on future judicial proceedings. (*Gregori v. Bank of America* (1989) 207 Cal. App. 3d 291, 309.) Standing is implicit in a disqualification motion. (*Jarvis v. Jarvis* (2019) 33 Cal.App.5th 113, 131.) A party moving to disqualify counsel must show a legally cognizable interest that is or would be harmed by the attorney’s conflict of interest. This means that, except in limited circumstances, a party seeking disqualification must have or have had an attorney-client relationship with the “target” attorney, as to hold otherwise would permit exploitation of the disqualification motion as a litigation tactic. (Vapnek, et al., Cal. Practice Guide: Professional Responsibility & Liability (The Rutter Group 2024), ¶ 4:322.10, citing *Great Lakes Const., Inc. v. Burman* (2010) 186 Cal. App.4th 1347, 1356-1359; *Marriage of Murchison* (2016) 245 Cal.App.4th 847, 851.) Exceptions to the attorney-client relationship include the existence of a confidential relationship with a nonclient; a close relationship between the nonclient and client, such as close familial relationships; or a nonclient with a personal stake in the motion. (Cal. Prac. Guide: Prof. Resp. & Liab., *supra*, ¶ 4.322.11.) In this case, Plaintiff does not have standing to bring the instant motion because she did not have a confidential or close relationship with Attorney Winet, and does not have a personal stake in the motion. Moreover, the alleged conflict of interest appears to be entirely speculative. Ms. Vega was deposed as an employee of the District and may be represented by the District’s counsel for the purpose of the deposition.

Plaintiff’s Evidentiary Objections 1-5 SUSTAINED.

Motion to Compel Further Deposition Testimony of Witness Karina Vega GRANTED in PART.

Karina Vega shall appear for deposition and respond, without objection, to questions regarding whether CVUSD disciplined, reprimanded or admonished Ms. Vega, regarding her actions in relation to referring Ms. Carrera and Ms. Carrera’s minor son to the Latino Commission.

Request for Sanctions DENIED.

Motion to Prevent CVUSD’s Attorney Randall Winet from Representing Ms. Vega DENIED.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may

make this determination pursuant to a motion for protective order by a party or other affected person. (CCP § 2017.020(a).) “[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal. App. 4th 261, 318.) The Individual Defendants move for a protective order limiting the dissemination and use of written discovery responses and deposition testimony, including videotaped deposition testimony, to purposes of this litigation only, and prohibiting the use of such materials for political purposes, including dissemination on social media, in the press, or through other public platforms.

Individual Defendants argue that the Court may, consistently with the First Amendment, issue a protective order restricting the dissemination of information obtained through discovery. (*In re Marriage of Candiotti* (1995) 34 Cal. App. 4th 718, 722.) “[W]hen a protective order is properly issued on a showing of good cause and limits only the dissemination of information obtained through discovery and not other sources, it does not offend the First Amendment.” (Id at 723; *Seattle Times Co. v. Rhinehart* (1984) 467 U.S. 20, 37.) The authority to issue such protective orders is necessary to prevent abuse, where privacy interests are implicated and reputational damage is possible. (*Coalition Against Police Abuse v. Superior Court* (1985) 170 Cal. App. 3d 888, 901.)

While Individual Defendants are correct that protective orders against public dissemination of discovery materials are not unconstitutional, it should be noted that the cases cited by Defendants, including *Candiotti, supra*, and *Coalition Against Police Abuse, supra*, involved information that was disclosed subject to protective orders after a finding of good cause. For example, in *Coalition Against Police Abuse*, the Court presumed that the trial court’s orders were supported by substantial evidence following a careful balancing of the competing interest of the parties. (Id at 896.) These cases do not state that information obtained through discovery may never be used for any purpose other than litigation. The California Discovery Act imposes no confidentiality requirements with respect to information obtained through discovery except upon motion for good cause shown. (*Westinghouse Electric Corp. v. Newman & Holtzinger* (1995) 39 Cal. App. 4th 1194, 1208.) “The “good cause” standard enables the trial court to distinguish between proper use of discovery and misuse of discovery and to treat each in the appropriate manner.” (*Gt, Inc. v. Superior Court* (1984) 151 Cal. App. 3d 748, 755.)

As the moving party, Individual Defendants have the burden of establishing good cause. (*Nativi, supra*, 223 Cal. App. 4th at 318.) They have failed to do so. Defendants argue only that Plaintiff may use information obtained in discovery to campaign against them in the upcoming school board election or make public comments. However, there is no evidence that the information sought is private, confidential or otherwise privileged.

Individual Defendants are concerned that an unrestricted, videotaped deposition could be edited or distorted for political impact. The assertion that Plaintiff would disseminate an edited video in a way that invites distortion is speculative, and does not outweigh the interests of Plaintiff. Defendants have not established good cause for a blanket protective order restricting all discovery materials.

Motion for Protective Order by Defendants Jesus Gonzalez, Joey Acuna Jr., Frances Esparza and Beatriz Gonzales is DENIED.

Request for Sanctions GRANTED.

Defense Counsel to pay \$1860 (\$600/hr x 3 hours + filing fees) within 30 days.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL DEFENDANT CVUSD'S FURTHER RESPONSES TO PLAINTIFF'S FORM INTERROGATORY-SET ONE, NUMBER 217.1 AS IT PERTAINS TO REQUEST FOR ADMISSION, SET ONE, NO. 47 AND FOR SANCTIONS IN THE AMOUNT OF \$897.50

Tentative Ruling: No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.